

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, CHANGING THE ZONING CLASSIFICATION FOR LAND LOCATED IN CHEYENNE BUSINESS PARK AND CAMPSTOOL BUSINESS PARK IN EASTERN CHEYENNE ALONG I-80 FROM LI – LIGHT INDUSTRIAL, HI – HEAVY INDUSTRIAL, AND CB – COMMUNITY BUSINESS TO BP – BUSINESS PARK.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne Planning and Development Department has initiated, through a petition to the Governing Body, a zoning map amendment for land located in eastern Cheyenne and along I-80 in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on May 4, 2026, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned zoning map amendment application is hereby approved and the zoning classification of the real property described below:

Lot 1, Block 1, Rocky Mountain Industrial Park, 5th Filing;
Lots 1 and 2, Block 1, Rocky Mountain Industrial Park Addition, 6th Filing;
Lots 1 and 2, Block 1, Cheyenne Business Parkway, 10th Filing;
Lot 1, Block 1, Cheyenne Business Parkway, 1st Filing, Refinement B;
Lots 1-4, Block 1, Progress Circle Business Center, Revision A;
Lots 4-9, Block 1, Cheyenne Business Parkway, 1st Filing;
Lot 15, Block 1, Cheyenne Business Parkway, 1st Filing;
Lots 1-4, Block 3, Cheyenne Business Parkway, 1st Filing;
Lots 1-4, Block 1, Cheyenne Business Parkway, 9th Filing;
Lot 1, Block 1, Cheyenne Business Parkway, 2nd Filing;
Lot 1 and 2, Block 6, Cheyenne Business Parkway 1st Filing;
Tract 25, Rocky Mountain Industrial Park Additon, 3rd Filing;
Tract 1, Rocky Mountain Industrial Park Addition, 4th Filing;
Tracts 15 -18 Rocky Mountain Industrial Park Addition, 3rd Filing;
Lot 1-3, Bronco Subdivision;
Tract 1, Dry Creek Waste Water Treatment Plant, 1st Filing;

Lot 1, Block 1, Cheyenne Business Parkway Third Filing (Arundel Technology Park Condominiums);
 Lots 2 and 3, Block 1, Cheyenne Business Parkway, 3rd Filing;
 Lot 1, Block 2, Cheyenne Business Parkway 3rd Filing;
 Lots 7-10, Block 2, Cheyenne Business Parkway, 3rd Filing;
 Lots 2-4, Block 1, Cheyenne Business Parkway, 7th Filing;
 Lot 4, Block 2, Cheyenne Business Parkway, 6th Filing;
 Lot 1 and 2, Block 1, Cheyenne Business Parkway, 12th Filing;
 Lot 2 and 3, Block 1, Cheyenne Business Parkway, 13th Filing;
 Lot 1-5, Block 1, Hutchins Corner, 2nd Filing;
 Lot 1 and 2, Lowe's Distribution Center of Cheyenne, 2nd Filing;
 Lot 1, Block 5, Campstool Addition, 4th Filing;
 Lot 3, Block 4, Campstool Addition, 4th Filing;
 Lot 1, Block, Campstool Addition, 7th Filing;
 Lot 1-3, Block 1, Cheyenne Business Parkway 14th Filing;
 Lot 1, Block 1, Cheyenne Light Fuel & Power East Cheyenne Business Park Substation;
 Lot 1, Block 1, Campstool Addition Sixth Filing;
 Lot 3, 4, 7, 10, Block 3, Campstool Addition, 3rd Filing;
 Lot 2, Block 2, Campstool Addition, 3rd Filing;
 Lot 1 and 3, Block 4, Campstool Addition, 3rd Filing;
 Lot 1 and 2, Block 1, Wyodigs Properties Subdivision;
 Lots 1 and 2, Block 1, Wyodigs Properties Subdivision, 2nd Filing;
 South 735' Lot 1, Block 1, Campstool Addition, 1st Filing;
 Lot 1, Block 2, Campstool Addition, 4th Filing;
 Lot 1, Block 1, Camping World;
 Lot 2, Block 1, Cogan Addition; and
 Lot 1-5, Block 1, Campstool Addition, 4th Filing;

Are hereby changed to BP – Business Park.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

Christensen Rd Phase 1 LLC

1925 Grand Ave, STE 129, Unit 61040
Billings, MT 59102

May 18, 2026

Connor White, Planner II
City of Cheyenne — Planning & Development
2101 O'Neil Avenue
Cheyenne, WY 82001

Re: PUDC-26-29 / PUDC-26-30 — Request to Exclude Lot 1, Block 1, Cheyenne Business Parkway, 11th Filing from BP Rezone

Dear Mr. White,

On behalf of Christensen Rd Phase 1 LLC, owner of Lot 1, Block 1, Cheyenne Business Parkway, 11th Filing, we respectfully request that our parcel be excluded from the proposed rezone from Heavy Industrial (HI) to Business Park (BP). We very much appreciate the time you and your colleagues have taken to walk us through the proposal, and we want to be constructive participants in the City's broader planning effort. After working through how the change would actually apply to our parcel, however, we do not believe it can comfortably be reconciled with the criteria the City would need to find under UDC §2.2.1.d.

Our property operates under the conditional use permit and Certificate of Compliance issued in Case PUDC-23-203 on June 12, 2024 for "General Industrial with Outdoor Storage – Commercial Warehouse," with the approved yard covering essentially the full site (see **Exhibit A**). Under HI, that use is fully conforming and entitled. Under BP, as we understand the planner's reading of UDC §1.3.11.c, the same use would convert to legal nonconforming. That is a meaningful downgrade for us in three respects:

1. A continuous 12-month vacancy would permanently terminate the use, where today vacancy carries no clock.
2. Any expansion or material change — including restructuring how the yard is leased (for example, bifurcating yard from building tenancies) — would move from a permitting question with available paths under HI to a discretionary nonconforming-use-expansion proceeding under BP with no guaranteed path.

3. The “legal nonconforming” designation will surface in every future buyer and lender diligence review and discount the asset relative to a fully conforming HI comp.

A side-by-side summary of the property’s rights under HI versus BP is provided at **Exhibit B** for ease of reference.

The upsides BP offers — relaxed landscaping, additional by-right commercial uses — do not apply to our parcel. We are already landscape-compliant, and our tenant base is industrial and depends on the yard.

Given that, we respectfully ask the City to consider, as applied specifically to our parcel, the findings required by UDC §2.2.1.d — in particular §2.2.1.d.3 (relative suitability of the property for development under the existing versus proposed district) and §2.2.1.d.8 (whether the change harms the public welfare). We believe excluding our parcel is the cleanest way to satisfy both, and it preserves the City’s optionality as well: if our use or strategy ever changes, we retain the ability to petition for BP at that time.

If exclusion is not available, we would appreciate the opportunity to discuss, and ideally to have reflected in the record, written confirmation that (a) the entitlement issued under PUDC-23-203 survives the rezone intact and runs with the land, (b) ordinary tenant transitions and yard restructuring will not be treated as nonconforming-use expansion, and (c) the abandonment provisions of UDC §1.3.11.c will not be asserted against the approved use. We would also, as a matter of standard practice, want to preserve our rights as an affected landowner under Wyoming law, including those provided under W.S. §§ 15-1-602 and 15-1-603, and we intend to participate fully in the public hearing process.

Thank you again for the helpful correspondence to date, and please let us know if anything further would be useful from us.

Respectfully,



Patrick Olson

Manager, Christensen Rd Phase 1 LLC

patrick@freehousecapital.com

Enclosures:

Exhibit A — Certificate of Compliance, Case PUDC-23-203 (issued June 12, 2024)

Exhibit B — Summary of Property Rights, HI vs. BP



EXHIBIT A

Certificate of Compliance

Case No. PUDC-23-203

Issued by the City of Cheyenne Planning & Development

June 12, 2024

Use Approved: General Industrial with Outdoor Storage – Commercial Warehouse



CERTIFICATE OF COMPLIANCE

City of Cheyenne, Wyoming

This Certificate is issued pursuant to Article 2, Section 2.2.3 and Article 6 of the Cheyenne Unified Development Code. The owner/agent herein named has completed all requirements of the site plan, landscape plan and building elevations indicated on the Certificate of Review dated December 26, 2023.

OWNER:

Christensen RD Phase 1 LLC
1925 Grand Ave STE 129 Unit 61040
Billings, MT 59102

AGENT:

Tristan Cordier
AVIpc
1103 Old town Lane, Suite 101
Cheyenne, WY 82009
tcordier@avipc.com

LEGAL:

Lot 1, Block 1, Cheyenne Business Parkway, 11th Filing, Cheyenne, Wyoming

ZONING:

HI Heavy Industrial

USE:

General Industrial with Outdoor Storage – Commercial Warehouse

CASE NUMBER:

PUDC-23-203 (Site Plan)

ISSUED BY:


Erin Fagan, Planner II

DATE: June 12, 2024

EXHIBIT B

Summary of Property Rights — HI vs. BP

Lot 1, Block 1, Cheyenne Business Parkway, 11th Filing

Dimension	Under HI (today)	Under BP (proposed)
Outdoor storage use	Entitled / by-right under CUP	Legal nonconforming
Vacancy clock	None	12 months continuous = use terminates
Yard restructuring or expansion	Permitting question; defined paths	Nonconforming-use-expansion proceeding; discretionary, no guaranteed path
Diligence / financing posture	Fully conforming HI	“Legal nonconforming” flag in every buyer/lender review
BP upsides that benefit this parcel	—	Landscaping (already compliant); additional by-right commercial uses (not used)

Source: PUDC-23-203 Certificate of Compliance (June 12, 2024); City of Cheyenne UDC §§1.3.11.c, 2.2.1.d, 5.1.2; current HI district standards.



BLACK HORSE, LLC

05/29/2026

Property Address: 8410 Trucker Trail

Legal Description: CAMPSTOOL ADDITION, 3RD FILING: LOT 1, BLOCK 2

Current Zoning: Light Industrial

Proposed Zoning: Business Park

To Whom It May Concern,

I, Dan Montgomery, Vice President of Blackhorse, LLC, am writing to formally request that 8410 Trucker Trail (CAMPSTOOL ADDITION, 3RD FILING: LOT 1, BLOCK 2), Cheyenne, WY 82007 be excluded from the proposed zone change to Business Park. I respectfully request that my parcel be excluded from this proposed zone change and be allowed to retain its current Light Industrial designation.

Thank you for your consideration,

A handwritten signature in blue ink, appearing to read 'Dan Montgomery', with a long horizontal flourish extending to the right.

Dan Montgomery



CITY OF
CHEYENNE
— W Y O M I N G —

PLANNING &
DEVELOPMENT
2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282
cheyennecity.org

April 16, 2026

PUBLIC NOTICE: Zoning Map Amendment

Dear Property Owner,

The purpose of this notification letter is to inform you that a Zoning Map Amendment (Zone Change) is proceeding. This zone change was initiated by the City pursuant to Unified Development Code Section 2.2.1.b.2. The area to be rezoned is the Cheyenne Business Parkway and Campstool Business Parks. They are proposed to be rezoned to BP – Business Park. There are no development actions associated with this zone change.

The Zone Change under consideration INCLUDES your property.

The project is scheduled as follows:

Planning Commission Meeting:	Monday, May 4, 2026, 6:00pm
City Council Introduction:	Monday, May 11, 2026, 6:00pm
Public Service Committee:	Monday, May 18, 2026, Noon
2nd reading of ordinances:	Tuesday, May 26, 2026, 6:00pm
Public Service Committee:	Monday, June 1, 2026, Noon
Final consideration at City Council:	Monday, June 8, 2026, 6:00pm

Meetings will be held in person in the municipal building (2101 O'Neil Avenue), with electronic option.

Background:

The City created the BP – Business Park zone district specifically for business parks to allow flexibility in both commercial and industrial uses. The BP zone is a mix of the CB – Community Business zone, the LI – Light Industrial zone, and the HI – Heavy Industrial zone. This zone change will not change the use or function of any current uses within the area proposed to be rezoned.

If you have concerns about this application, please feel free to give our department a call at 307-638-4342 or email at cwhite@cheyennecity.org.

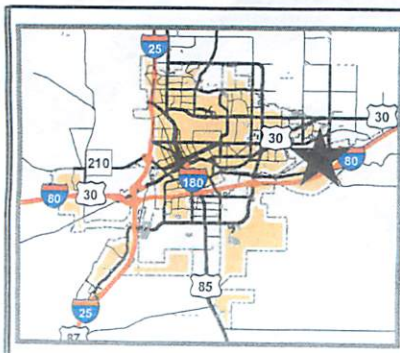
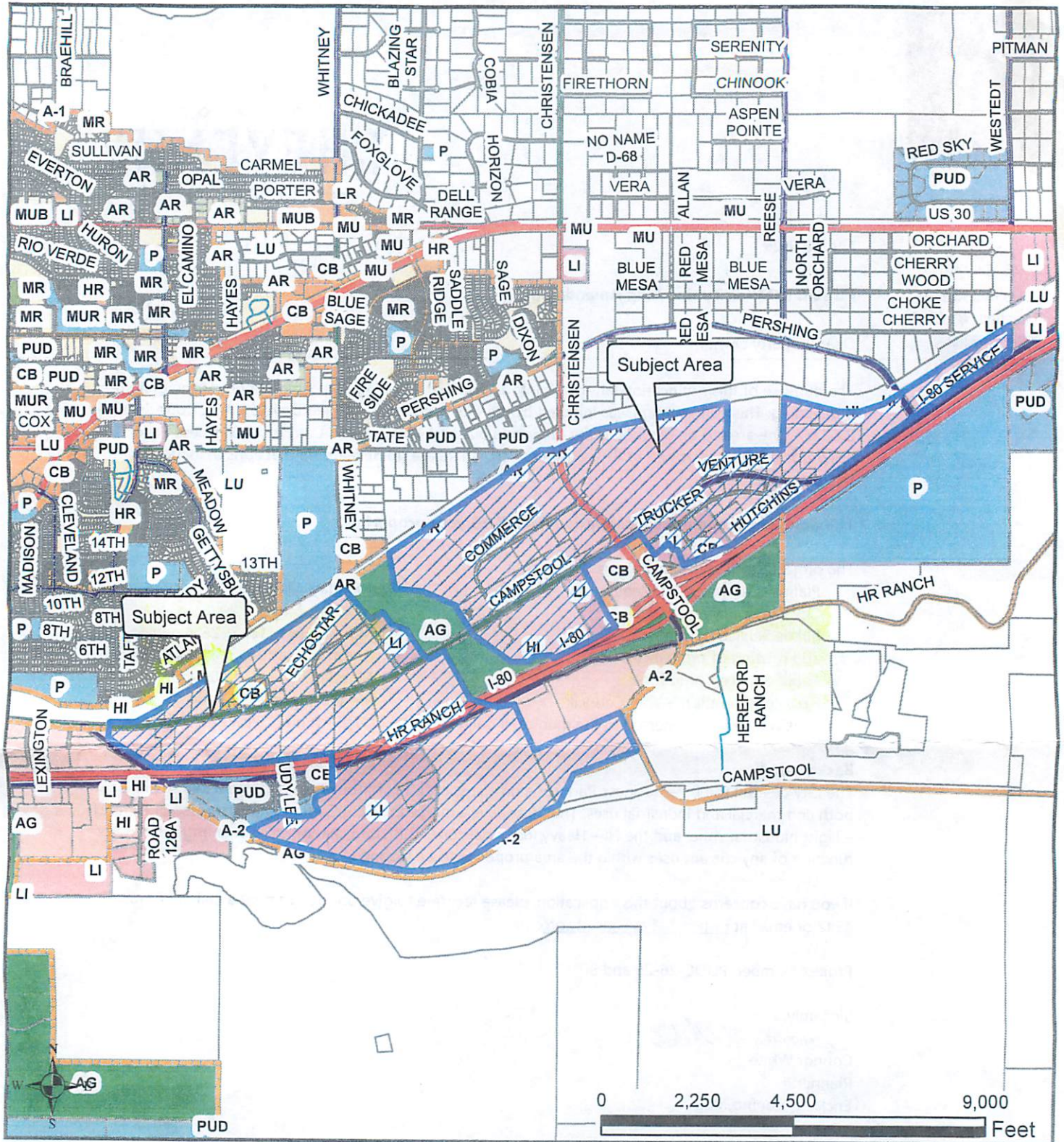
Project Number: PUDC-26-29 and 30

Sincerely,

Connor White

Planner II

Encl.: Zoning Map



Attachment 1: Zoning Map PUDC-26-29/30

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- Nov 19 City Limits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built

- HR / High Density Residential
- MR / Medium Density Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential

- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
- MUB / Mixed Use Business Emphasis
- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt